

02:00 PM **LINE 2**

23-CLJ-05839

WELLS FARGO BANK, N.A. VS. PATRICIA J. FERNANDEZ

WELLS FARGO BANK, N.A.
PATRICIA J. FERNANDEZ

ASHLEY MULHORN

Plaintiff Wells Fargo Bank, N.A.'s Motion to Vacate Dismissal Under C.C.P. § 664.6 and Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed motion to vacate dismissal and enter judgment pursuant to the parties' stipulation against defendant Patricia J. Fernandez is **GRANTED**.

Under Code of Civil Procedure, section 664.6, the court retains jurisdiction in a case pending full performance of the terms of a written settlement agreement and such agreement may then be enforced upon motion of the aggrieved party.

The parties entered into a stipulated settlement agreement which was filed with the court on April 4, 2024. A copy of the agreement is attached as Exhibit 1 to the Declaration of plaintiff's counsel Edgar B. Lopez, Esq., filed in support of the instant motion, which provides that judgment in the sum of \$14,548.24 would not be entered against defendant so long as defendant made monthly payments to plaintiff until defendant paid judgment amount in full. (Lopez Decl. exh. 1, ¶¶ 2 & 3.) In the event of default, the parties agreed that the court was authorized to enter judgment in favor of the plaintiff and against defendant in the amount of \$14,548.24, plus costs, minus credit for any payments actually made pursuant to the Stipulation. (*Id.*, ¶ 8, exh. 1, ¶ 8.) Defendant defaulted after making payments totaling \$8,548.24. (*Id.*, ¶ 5.) Plaintiff notified her in writing of the default on or about December 30, 2024 and provided her seven days to cure the default pursuant to their agreement. (*Id.*, ¶ 6, exh. 1, ¶ 10.)

Defendant's default is uncontroverted thus the court finds that plaintiff establishes being entitled to a judgment of \$6,445 under the terms of the parties' settlement agreement (the principal sum of \$14,548.24, plus costs of \$445, minus credit of \$8,548.24 for payments made.)

Judgment in the amount of \$6,445 shall be entered against defendant and payable upon entry of this order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 3**

24-CIV-08059

JACK RODRIGUEZ VS. GENERAL MOTORS LLC

JACK RODRIGUEZ
GENERAL MOTORS LLC

MARK P. ROMANO
MARY L. ARENS MCBRIDE

Defendant General Motors LLC's Motion for Summary Judgment or Summary Adjudication

TENTATIVE RULING:

Defendant General Motors LLC's Motion for Summary Judgment or Summary Adjudication is **GRANTED in part** and **DENIED in part**.

Plaintiff Jack Rodriguez's Objections to Evidence are **SUSTAINED**.

The notice of motion lists the incorrect location for the hearing. If the tentative ruling is contested, the hearing will be held in Department 28, Courtroom I, located at 800 North Humboldt Street, San Mateo.

The First Amended Complaint (FAC) asserts three causes of action concerning Rodriguez's purchase of a 2021 Chevrolet Tahoe manufactured by defendant General Motors LLC (GM). (See Feb. 25, 2026 FAC, ¶¶ 6–7.) One is for breach of express warranty under the Commercial Code, one is for breach of express warranty under common law, and one is for violation of the Magnuson–Moss Act. (*Id.*, at ¶¶ 9–42.) GM seeks summary judgment or, alternatively, summary adjudication of each of these three causes of action. The parties do not dispute that the cause of action based on the Magnuson–Moss Act is derivative of the other two such that it survives as long as at least one the two warranty causes of action stands.

As a preliminary matter, Rodriguez objects to the format of the separate statement, due to its listing of the material facts just once under the heading “facts common to all issues.” However, the California Rules of Court only require a separate statement to separately identify each cause of action that is the subject of the motion and each supporting material fact claimed to be without dispute with respect to the cause of action that is the subject of the motion. (See Cal. Rules of Court, rule 3.1350(d).) The separate statement substantially complies with these requirements, and the court therefore considers the request for summary adjudication, made in the alternative, on the merits.

A. Legal Standard on Summary Judgment & Summary Adjudication

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted